

PREAMBLE

BHARGAV CHAKRABORTY

INTRODUCTION

- The term 'Preamble' refers to the introduction or preface to the Constitution.
- American Constitution was the first to begin with a Preamble.
- Contains the summary or essence of the Constitution.
- Many countries, including India, followed this American practice.

HISTORICAL BACKGROUND

- The Preamble to the Indian Constitution is based on the 'Objectives Resolution', drafted and moved by Pandit J.L.Nehru, and adopted by the Constituent Assembly of India.

[Q. ON WHICH DATE DID Pt. J L NEHRU MOVED THE HISTORIC OBJECTIVES RESOLUTION IN THE CONSTITUENT ASSEMBLY ?

- A. 9TH DECEMBER , 1946
- B. 11TH DECEMBER , 1946
- C. 13TH DECEMBER , 1946
- D. NONE OF THE ABOVE OPTIONS]

TEXT OF THE PREAMBLE

- “We, THE PEOPLE OF INDIA, having solemnly resolved to constitute
- India into a **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC** and to secure to all its citizens:
- **JUSTICE**, Social, Economic and Political;
- **LIBERTY** of thought, expression, belief, faith and worship;
- **EQUALITY** of status and of opportunity; and to promote among them all;
- **FRATERNITY** assuring the dignity of the individual and the unity and **integrity** of the Nation;
- IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do HEREBY **ADOPT, ENACT AND GIVE** TO OURSELVES THIS CONSTITUTION”.

COMPONENTS OF PREAMBLE

- The Preamble reveals four components:
- 1. **Source of authority of the Constitution:** The Preamble states that the Constitution derives its authority from the people of India.
- 2. **Nature of Indian State:** It declares India to be of a sovereign, socialist, secular democratic and republican polity.
- 3. **Objectives of the Constitution:** It specifies justice, liberty, equality and fraternity as the objectives.
- 4. **Date of adoption of the Constitution:** It stipulates November 26, 1949, as the date.

MEANING OF SPECIAL TERMS IN THE PREAMBLE

Sovereign

- The word 'sovereign' implies that India is neither a dependency nor a dominion of any other nation, but an independent state.
- There is no authority above it, and it is free to conduct its own affairs (both internal and external).

Socialist

- Notably, the Indian brand of socialism is a 'democratic socialism' and not a 'communistic socialism' (also known as 'state socialism') which involves the nationalisation of all means of production and distribution and the abolition of private property.
- Democratic socialism, on the other hand, holds faith in a 'mixed economy' where both public and private sectors co-exist side by side

Secular

- The Indian Constitution embodies the positive concept of secularism ie, all religions in our country (irrespective of their strength) have the same status and support from the state. [Articles 25 to 28 (guaranteeing the fundamental right to freedom of religion) is a part of the constitution.]

Democratic

- A democratic polity, as stipulated in the Preamble, is based on the doctrine of popular sovereignty, that is, possession of supreme power by the people
- Democracy is of two types—direct and indirect. In direct democracy, the people exercise their supreme power directly as is the case in Switzerland. There are four devices of direct democracy, namely, **Referendum**, **Initiative**, **Recall** and **Plebiscite**. In indirect democracy, on the other hand, the representatives elected by the people exercise the supreme power and thus carry on the government and make the laws. This type of democracy, also known as representative democracy, is of two kinds—parliamentary and presidential.

Republic

- A democratic polity can be classified into two categories– monarchy and republic. In a monarchy, the head of the state (usually king or queen) enjoys a hereditary position, that is, he comes into office through succession, e.g., Britain. In a republic, on the other hand, the head of the state is always elected directly or indirectly for a fixed period, e.g., USA.
- Therefore, the term 'republic' in our Preamble indicates that India has an elected head called the president. He is elected indirectly for a fixed period of five years.

Justice

The term '**justice**' in the Preamble embraces three distinct forms– **social, economic and political**. **Social justice** denotes the equal treatment of all citizens without any social distinction based on caste, colour, race, religion, sex and so on.

- **Economic justice** denotes the **non-discrimination between people on the basis of economic factors**. It involves the elimination of glaring inequalities in wealth, income and property

- The ideal of justice—social, economic and political—has been taken from the **Russian Revolution (1917)**.

Liberty

- The term 'liberty' means the absence of restraints on the activities of individuals, and at the same time, providing opportunities for the development of individual personalities.
- The Preamble secures to all citizens of India liberty of thought, expression, belief, faith and worship, through their Fundamental Rights
- However, liberty does not mean 'license' to do what one likes, and has to be enjoyed within the limitations mentioned in the Constitution itself. In brief, the liberty conceived by the Preamble or Fundamental Rights is **not absolute but qualified**. [The ideals of liberty, equality and fraternity in our Preamble have been taken from the **French Revolution (1789–1799)**.]

○ **Equality**

- The term 'equality' means the absence of special privileges to any section of the society, and the provision of adequate opportunities for all individuals without any discrimination.
- The Preamble secures to all citizens of India equality of status and opportunity. This provision embraces three dimensions of equality—civic, political and economic.

The following provisions of the chapter on Fundamental Rights ensure civic equality:

- (a) Equality before the law and Equal Protection of Laws(Article 14).
- (b) Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth (Article 15).
- (c) Equality of opportunity in matters of public employment(Article 16).
- (d) Abolition of untouchability (Article 17).
- (e) Abolition of titles (Article 18).

- There are two provisions in the Constitution that seek to achieve political equality. One, no person is to be declared ineligible for inclusion in electoral rolls on grounds of religion, race, caste or sex (Article 325). Two, elections to the Lok Sabha and the state assemblies to be on the basis of adult suffrage (Article 326).
- The Directive Principles of State Policy (Article 39) secures to men and women equal right to an adequate means of livelihood and equal pay for equal work.

Fraternity

- Fraternity means a sense of brotherhood. The Constitution promotes this feeling of fraternity by the system of single citizenship. Also, the Fundamental Duties (Article 51-A) say that it shall be the duty of every citizen of India to promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic, regional or sectional diversities
- The phrase 'unity and integrity of the nation' embraces both the psychological and territorial dimensions of national integration. Article 1 of the Constitution describes India as a 'Union of States' to make it clear that the states have no right to secede from the Union, implying the indestructible nature of the Indian Union.

The debate : Is the Preamble a Part of the Constitution ?

- In the **Berubari Union case (1960)**, the Supreme Court said that the Preamble shows the general purposes behind the several provisions in the Constitution, and is thus a key to the minds of the makers of the Constitution. Despite this , the **Supreme Court specifically opined that Preamble is *not* a part of the Constitution.**
- In the **Kesavananda Bharati case (1973)**, the **Supreme Court rejected the earlier opinion and held that Preamble is a part of the Constitution.** It observed that the Preamble is of extreme importance and the Constitution should be read and interpreted in the light of the grand and noble vision expressed in the Preamble.
- In the **LIC of India case (1995)** also, the **Supreme Court again held that the Preamble is an integral part of the Constitution.**

A Few Things to Note

1. The Preamble is neither a source of power to legislature nor a prohibition upon the powers of legislature.
2. It is non-justiciable, that is, its provisions are not enforceable in courts of law.

Can the Preamble be Amended ?

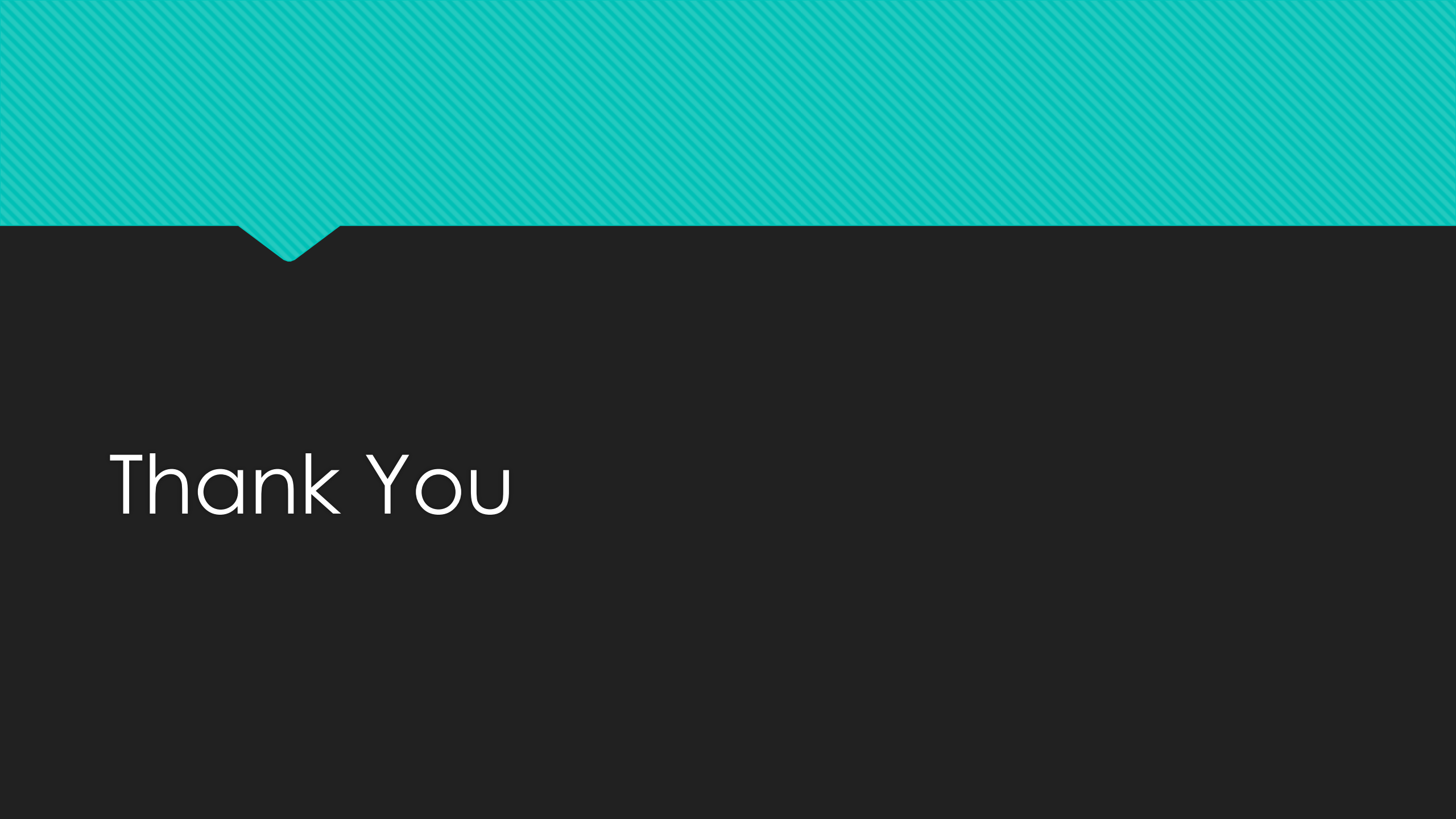
- The question as to whether the Preamble can be amended under Article 368 of the Constitution arose for the **first time** in the historic ***Kesavananda Bharati case***.
- It was urged that the Preamble cannot be amended as it is not a part of the Constitution. The petitioner contended that the amending power in Article 368 cannot be used to destroy or damage the basic elements or the fundamental features of the Constitution, which are enshrined in the Preamble.
- The Supreme Court, however, held that the Preamble is a part of the Constitution. The Court stated that the opinion tendered by it in the *Berubari Union* (1960) in this regard was wrong, and held that the Preamble can be amended, subject to the condition that no amendment is done to the 'basic features'.
- **In other words, the Court held that the basic elements or the fundamental features of the Constitution as contained in the Preamble cannot be altered by an amendment under Article 368.**

Amendment of the Preamble

- The Preamble has been amended only once so far, in 1976, by the 42nd Constitutional Amendment Act, which has added three new words–Socialist, Secular and Integrity–to the Preamble.

QUOTES OF FAMOUS PERSONALITIES REGARDING THE PREAMBLE

- Sir Alladi Krishnaswami Iyer : “The Preamble to our Constitution expresses what we had thought or dreamt so long.”
- K.M. Munshi : “The Preamble is the ‘**horoscope of our sovereign democratic republic**’.”
- Pandit Thakur Das Bhargava : “The Preamble is the most precious part of the Constitution. It is the **soul** of the Constitution. It is a **key** to the Constitution. It is a **jewel set** in the Constitution. It is a proper yardstick with which one can measure the worth of the Constitution”
- Sir Ernest Barker : He described the Preamble as the ‘key-note’ to the Constitution and quoted it at the opening of his popular book, *Principles of Social and Political Theory* (1951).
- N.A. Palkhivala : “**Identity card** of the Constitution.”

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Thank You